

Court No. - 3

Case :- WRIT - C No. - 8117 of 2024

Petitioner :- Dipak Raj

Respondent :- State Of U.P. Thru. Prin. Secy. Energy Deptt. Lko. And 3 Others

Counsel for Petitioner :- O.P. Tiwari, Tripti Pandey

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Subhash Vidyarthi, J.

Heard learned counsel for the petitioner and Ms. Aprajita Bansal who appears on behalf of respondent no.2 and 3.

This petition has been filed with the following main prayer :-

- i. *Issue a writ, order or direction in the nature of certiorari thereby quashing of the impugned recovery citation dated 09.8.2024 issued by the opposite party no.4 (contained as Annexure no.1 to the writ petition), in the interest of justice.*
- ii. *Issue a writ, order or direction in the nature of mandamus thereby commanding and directing the opposite parties not to take any coercive action against the petitioner in pursuance to the impugned recovery citation dated 09.8.2024 issued by the opposite party no.4.*

It is the case of the petitioner that the petitioner's premises were raided and it was alleged that he had committed theft of electricity. FIR was lodged on 10.8.2023. The opposite party no.3 has shown an inspection report without verifying papers and documents of the petitioner and have initiated recovery proceedings. Till date the petitioner has not been served any notice under Section 3 of the U.P. Electricity Supply Code, 2005.

It has been submitted that the Tehsil authorities are proposing to recover the dues of electricity without final assessment orders being passed.

Ms. Aprajita Bansal on the basis of instructions says that the petitioner's premises were raided and it was found that there was dues of electricity for which FIR was lodged. A provisional assessment order was issued to him. Petitioner's mother has submitted the reply not to the Executive Engineer concerned but has made an application to the SDO of the power corporation, copy of which has been filed Annexure 4 to the petition, however, no final assessment order has yet been issued in the matter.

This petition is ***disposed of*** with the direction to the petitioner to file a reply to the provisional assessment order issued to him addressed to the Executive Engineer-opposite party no.2 within one week from today. If such an application/ reply is submitted the same shall be considered and a final assessment order shall be passed within a further period of four weeks. For a period of five weeks or till such a decision is taken by the Executive Engineer, whichever is later recovery proceedings initiated by means of the recovery certificate in question shall remain in abeyance.

Order Date :- 20.9.2024

mks